



have achieved a lot in my tenure, but the contract remains unresolved and (that) keeps generating (new) issues. Installing an entirely new board without any history of the contract's complexity could mean it takes years to understand and address the problems — and by then it might be too late, given the influence MLC is trying to exert. I sought ICC guidance or intervention, but the ICC said it would not involve itself in internal U.S. commercial contracts. Most board members felt resigning would unjustly damage their reputations. They did not create these legacy issues and saw no reason to quit; many are elected or publicly accountable officials. So they are not prepared to resign at this time.

Do you believe the current ACE agreement breaches the Ted Stevens Act, USOPC or ICC governance principles?

We strongly believe the contract violates the Ted Stevens Act and ICC membership guidelines. At drafting, I don't think those considerations were properly addressed. It was treated as a short-form agreement, with a promised long-form to follow within three months; that never materialised, yet the short-form became binding. We have repeatedly told ACE this. The ICC also reviewed the contract and, in 2022, gave opinions indicating we needed to address certain sections (for example, treatment of ICC funding). The 2019 ICC general funding level was taken as a baseline; any increase above that allows ACE discretion over 90% of the incremental funds. That, in our view, is a direct violation of ICC membership criteria — no external party should control ICC funding.

Similarly, on player contracts: ACE has discretion over contract

decisions and amounts, which could influence selections. We see that as another direct violation.

If those issues are not corrected, could USA Cricket face anti-trust exposure?

Yes. Anti-trust is serious in U.S. law. The contract grants ACE exclusivity over men's cricket under five hours in duration.

That level of exclusivity is, in our view, a significant anti-trust risk. Individuals have already said they feel undermined or ignored when seeking sanctioning for their tournaments. If this continues, someone could litigate against USA Cricket for entering a contract that allegedly violates anti-trust principles.

You alleged in a notice that ACE was effectively using USA Cricket to fund MLC player salaries by treating MLC draft salaries as national player contracts. Is that what is happening?

That is how they are articulating it. They say they will contract players who play MLC and those players will also be available for USA national teams — but there was no clear communication to the players. It effectively forces us to draw from that pool; if we select others, ACE will not pay.

The MLC player salaries are paid by franchises, not directly by ACE, correct?

Correct. The central contract framework is there, but the amounts are paid by the franchises. Because they are not coordinating with us — not consulting on which players get contracts or the amounts — we issued our own contracts. Franchises conduct their drafts independently each year; we only see who has what after they submit draft records.

Unpaid player dues have been cited at USD 606,189 for last year and USD 647,603 for this year. Are those figures accurate?

I'm not certain of the exact numbers, but those sound right.